

Shri Ram v. State of U.P.

Allahabad High Court, Lucknow Bench · Single Judge · 15 November 2019 · U/S 482/378/407 No. 6046 of 2019 · **Pending; notice issued; coercive steps stayed**

HEADNOTE

In a pending s.482 CrPC petition to quash an FIR and charge-sheet under s.135 of the Electricity Act, 2003 alleging unauthorized connection, the High Court noted that the applicant was a registered MVVNL consumer who had paid a bill, held that the matter required consideration, issued notice, and directed that no coercive steps be taken. Later listings, including 15 November 2019, only continued that interim. No construction of s.135 or the Supply Code was recorded.

FACTUAL SUMMARY

Shri Ram, a registered MVVNL consumer (account C424417114162), invoked s.482 CrPC against Case Crime No. 226/2018 under s.135 of the Electricity Act, 2003, P.S. Auras, Unnao, registered on 27.09.2018 on a Junior Engineer's complaint of unauthorized connection. He produced an MVVNL receipt of 13 August 2019 for Rs 587 and contended that Chapter VIII of the U.P. Electricity Supply Code, 2005 was not followed and that the charge-sheet and cognizance were mechanical. The AGA opposed.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

interlocutory listing of s.482 petition against s.135 prosecution

HOLDING

On 6.9.2019 the Court, noting that the applicant was a registered consumer who had paid a bill, held that the matter required consideration, issued notice to opposite parties 2 to 4, stayed coercive steps in the court-below proceedings, and permitted impleadment of MVVNL. Orders of 30.10.2019, 7.11.2019 and 15.11.2019 merely relisted the petition and continued the interim. No finding was recorded on s.135 or Chapter VIII of the 2005 Supply Code. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CHAPTER VIII OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 WAS COMPLIED WITH, AND WHETHER THE S.135 FIR, CHARGE-SHEET AND COGNIZANCE ARE LIABLE TO BE QUASHED

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